

FIRST ENDORSEMENT

Chief Prosecutor APU, Andre Applewhite, Civilian Complaint Review Board, to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, February 6, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-24944 against Police Officer James Sullivan, Tax Registry No. 963295. The case was conferenced on January 23, 2024, before Assistant Deputy Commissioner of Trials Anne E. Stone, who approved the negotiated penalty of a Command Discipline Schedule B and a forfeiture of Ten (10) vacation days, after Police Officer Sullivan accepted the findings and substantiation of the allegations contained in the Charges and Specifications dated March 4, 2022. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite

Chief Prosecutor APU

New York City Civilian Complaint Review Board

DISAPPROVED

APR 15 2024
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-24944
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, SULLIVAN	FIRST JAMES	M.I. F	COMMAND PBMS SPECIALIZED UNITS
SHIELD NO. 25438	TAX REGISTRY NO. 963295	SOCIAL SECURITY NO.	DATE APPOINTED 01/04/2017	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer James SULLIVAN, on or about February 27, 2020, at approximately 1857, while assigned to PBMS SU and on duty, in the vicinity of 456 West 25th Street, New York County, abused his authority as a member of the New York City Police Department, in that he interfered with § 87(2)(b) use of a recording device without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer James SULLIVAN, on or about February 27, 2020, at approximately 1857, while assigned to PBMS SU and on duty, in the vicinity of 456 West 25th Street, New York County, was discourteous, in that he spoke discourteously to § 87(2)(b) by stating, in sum and substance, "It's all in between the seats, you morons," without police necessity.	DISMISSED	
3. Police Officer James SULLIVAN, on or about February 27, 2020, at approximately 1857, while assigned to PBMS SU and on duty, in the vicinity of 456 West 25th Street, New York County, was discourteous, in that he spoke discourteously	DISMISSED	

DC Baskin
FIRST DEPUTY COMMISSIONER

2/15/24
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Caber
POLICE COMMISSIONER

4/15/24
DATE



DISPOSITION OF CHARGES
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BOOK & PAGE NO. Page <u>2</u> of <u>2</u>
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
to § 87(2)(b) by stating, in sum and substance, "It's all in between the seats, you morons," without police necessity.		

DC Brattino 2/15/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab... 4/15/24
POLICE COMMISSIONER DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 8, 2024

Re: CCRB Case No. 202002039 (Incident Date: February 27, 2020) involving Police Officer James Sullivan, Tax No. 963295 (DADS No. 2022-24944)

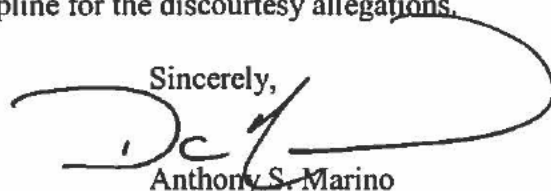
Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer James Sullivan and has determined that his actions do not warrant the proposed penalty.

In this matter, Officer Sullivan observed a double-parked vehicle and, on approach, smelled a strong odor of marijuana emanating from the vehicle. As Officer Sullivan was searching the vehicle, he inadvertently shut off a complainant's cellphone. During this encounter, the officer also used discourteous language when speaking with the two complainants. After considering the facts and circumstances of this case, the Police Commissioner finds that Officer Sullivan did use discourteous language. However, the Police Commissioner also finds that the officer did not intentionally interfere with the complainant's right to record and, thus, did not violate Department rules on that count. Indeed, during the settlement conference, CCRB's prosecutor noted that this was not an intentional interference by Officer Sullivan.

Therefore, while the Police Commissioner agrees with the CCRB that the charges and specifications in this matter should be dismissed, the Police Commissioner intends to impose no disciplinary action for the allegation that Officer Sullivan intentionally interfered with the complainant's use of a recording device. Additionally, the Police Commissioner intends to direct the issuance of a Schedule "A" Command Discipline for the discourtesy allegations.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Craig Hayes, Esq.

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Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

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100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

April 12, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202002039 (Incident Date: February 27, 2020) involving Police Officer James Sullivan, Tax No. 963295 (DADS No. 2022-24944)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated April 8, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent not to impose any disciplinary action against Police Officer James Sullivan’s for his interference with the complainant’s use of a recording device, and only direct the issuance of a Schedule “A” Command Discipline for his discourtesy towards the complainant. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the recommendation of CCRB, you determined that Police Officer Sullivan did use discourteous language, but that he inadvertently, and not intentionally interfered with the complainant’s right to record, and therefore did not violate Department rules on that count. CCRB disagrees with your determination.

Police Officer Sullivan stated that during the search of the vehicle, he noticed one of the occupant’s phones in the cupholder in the front of the vehicle. He believed that upon picking up the phone to look inside the cupholder, he turned it off by closing it or holding down the side button. He explained he may have done this because the phone may have been recording. When asked why he believed the phone was recording, Police Officer Sullivan said he recalled noticing either a camera roll video or a Facetime call in progress. When asked why he would turn the phone off if it was recording, Police Officer Sullivan said the phone was not in either occupant’s possession, so he just turned it off. He did not know if he turned off the phone or exited to the home screen of the phone. After he may have turned the phone off, Police Officer Sullivan placed the phone back in the cupholder.

When asked if there was any reason why he closed the phone, beyond the fact that appeared to be engaged in a Facetime call or a video recording, Police Officer Sullivan said there was no further reason. He said his reason for interacting with the phone initially was to look underneath it.

Police Officer Sullivan said there was no law enforcement related purpose for turning the phone off and he said this may have been a natural reaction to seeing a phone that was not locked.

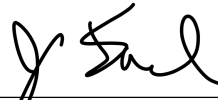
At 02:15 into Police Officer Sullivan's BWC video, he grabs § 87(2)(b) cell phone and places it on the driver seat with the camera lens facing down.

Patrol Guide Procedure 203-09 states that individuals have a right to lawfully observe and/or record police activity, including searches. The right to lawfully observe and/or record police activity extends to individuals in public places, as well as private property in which the individual has a legal right to be present, such as the individual's own property. This right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual who is observing/recording.

The proof that Police Officer Sullivan interfered with the complainant's recording device is found in Respondent's own statement and the BWC. Police Officer Sullivan's own admissions prove there was an intent to stop the recording.

The negotiated penalty complies with the Disciplinary Matrix, as forfeiture of 10 vacation days is the mitigated penalty for interference with a recording device. The CCRB considered all of the circumstances in reaching this disposition, with PO Sullivan's willingness to accept responsibility for misconduct being the main factor for mitigation. This negotiated disposition was accepted by ADCT Ann E. Stone during the plea conference held on January 23, 2024. While the CCRB recognizes that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, CCRB requests that the negotiated issuance of a Schedule "B" Command Discipline and penalty of a forfeiture of 10 vacation days be imposed.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: Craig Hayes, Esq.